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April 15, 2025

ENGROSSED HOUSE
BILL NO. 1664

By: Cantrell of the House

and

Alvord of the Senate

An Act relating to county commissioners; amending 19 O.S. 2021, Section 326, which relates to meetings; allowing county commissioners to participate in conferences, trainings, and events under certain circumstances; authorizing county commissioners to participate in legislative meetings in certain circumstances; authorizing county commissioners to discuss budgetary matters in certain circumstances; amending 56 O.S. 2021, Section 625.2, which relates to the Statewide Independent Living Council; allowing the Council to hold meetings via videoconferencing; providing procedures; permitting the Council to conduct executive sessions by videoconference under certain circumstances; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 19 O.S. 2021, Section 326, is amended to read as follows:

Section 326. A. In addition to the special sessions for equalizing assessments, and all other special sessions now provided by law, the county commissioners shall meet and hold sessions for the transaction of business in the county courthouse, at the county seat, on or before the first Monday of each month, and may remain in

1 session as long as the public business may require, and the passing
2 upon, allowing or rejecting of bills against the county shall be
3 taken up and passed upon by the board in the order in which the
4 claims have been filed, and in which order such claims must be
5 entered upon the calendar, except salary, wage and compensation
6 claims of officers and deputies and employees, which salary, wage
7 and compensation claims may be considered and paid, on or after the
8 termination of the service pay period; provided, that such claims by
9 subordinate deputies and employees be first approved by the officer
10 having charge of the office or department. The board of county
11 commissioners may recess or adjourn its meetings within the session,
12 either from time to time or from day to day, or on call of the
13 chairman; but, if such board does not sooner adjourn its session for
14 any month, such session shall terminate and be adjourned by
15 operation of law on the last business day of such month. If the
16 board shall have adjourned its session before the last business day
17 of any month, the county clerk shall have power to call special
18 sessions when the best interests of the county demand it, upon
19 giving five (5) days' notice of the time and object of calling the
20 commissioners together, by posting up notices in three public places
21 in the county, or by publication in some newspaper of general
22 circulation in the county; provided, that in the case of a vacancy
23 in the office of county clerk, the ~~chairman~~ chair of the board shall

24

1 have power to call a special session for the purpose of filling such
2 vacancy.

3 B. The board of county commissioners may meet at times and in
4 places within the county other than the county courthouse if it is
5 determined that such meetings are beneficial to the general public.
6 Such meetings shall be in compliance with the Oklahoma Open Meeting
7 Act.

8 C. County commissioners may attend and participate in
9 conferences, trainings, and educational, press, and social events,
10 even if a quorum is present, provided that no official action is
11 taken and any discussion of the business of the board of county
12 commissioners is incidental to the event.

13 D. County commissioners may attend and participate in meetings
14 and proceedings of the Legislature, even if a quorum is present,
15 provided that no official action is taken.

16 E. In budget board counties, county commissioners and other
17 county elected officers may discuss budgetary matters, provided that
18 a quorum of the county budget board is not present and no official
19 action is taken.

20 SECTION 2. AMENDATORY 56 O.S. 2021, Section 625.2, is
21 amended to read as follows:

22 Section 625.2. A. There is hereby created the Statewide
23 Independent Living Council which shall be established pursuant to
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1 the federal Rehabilitation Act of 1973, Public Law 93-112, codified
2 at 29 U.S.C., Section 701 et seq., as amended.

3 B. The duties of the Council shall be those as set forth in the
4 federal Rehabilitation Act of 1973, as amended.

5 C. Subject to the availability of state funds other than those
6 appropriated to the Department of Rehabilitation Services for the
7 purpose of providing independent living services to its clients, and
8 in accordance with the State Plan for Independent Living, the
9 Department of Rehabilitation Services, in joint effort with the
10 Statewide Independent Living Council, may contract with independent
11 living centers for the purpose of providing independent living
12 services to individuals with disabilities and their families.

13 D. The Council shall be permitted to hold meetings through
14 videoconferencing, provided that:

15 1. Each member of the Council is audible or visible to each
16 other and the public;

17 2. The meeting notice and agenda prepared in advance of the
18 meeting, as required by the Oklahoma Open Meeting Act, shall
19 indicate if the meeting will include videoconferencing and shall
20 also state:

21 a. each Council member appearing remotely, and

22 b. the identity of the Council member or members who will
23 be physically present at the meeting site, if any;

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1 3. After the meeting notice and agenda are prepared and posted
2 as required by law, Council members shall not be permitted to alter
3 their method of attendance; provided, however, those members who
4 were identified as appearing remotely may be permitted to physically
5 appear at the meeting site, if any, for the meeting;

6 4. The Council shall be permitted to participate and speak, as
7 allowed by rule or policy set by the Council, in a meeting which
8 utilizes teleconference or videoconference in the same manner and to
9 the same extent as the public is allowed to participate or speak
10 during a meeting where all public body members are physically
11 present together at the meeting site;

12 5. Unless confidential or privileged by applicable law, any
13 documents or other materials provided to members of the Council or
14 shared electronically between members of the Council during a
15 meeting utilizing teleconferencing or videoconferencing shall also
16 be immediately available to the public on the Council's website;

17 6. All votes occurring during any meeting utilizing
18 teleconference or videoconference shall occur and be recorded by
19 roll call votes; and

20 7. The Council abides by all other requirements of the Oklahoma
21 Open Meeting Act.

22 E. The Council is permitted to conduct an executive session by
23 videoconference. For such executive sessions, no Council member is
24 required to be physically present so long as each Council member is

1 audible or visible to each other. The meeting notice and agenda
2 prepared in advance of the meeting as required by law shall indicate
3 if the executive session will include videoconferencing and shall
4 also state the identity of each Council member appearing remotely,
5 and whether any member will be physically present at the meeting
6 site, if any, for the executive session.

7 SECTION 3. It being immediately necessary for the preservation
8 of the public peace, health or safety, an emergency is hereby
9 declared to exist, by reason whereof this act shall take effect and
10 be in full force from and after its passage and approval.

11 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
12 April 15, 2025 - DO PASS
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